

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

STEPHEN BROWN,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD OFFICER EVANS BELLAVOIX,
NYPD OFFICER UC 391 and
NYPD DETECTIVE EDWIN MARTINEZ,

Defendants.

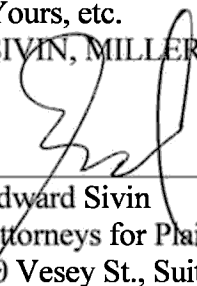
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 22, 2020

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By 

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
STEPHEN BROWN,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER EVANS BELLAVOIX,
NYPD OFFICER UC 391 and
NYPD DETECTIVE EDWIN MARTINEZ,

Defendants.

----- X

Plaintiff, by his attorneys Sivin, Miller & Roche, LLP, complaining of defendants,
alleges as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter "the City") was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the
dates when the state-law causes of action accrued herein, a notice of claim and intention to sue was
duly served upon and filed with the defendants on behalf of plaintiff; that this action was not
commenced until the expiration of thirty (30) days after such notice of claim and intention to sue
was presented and defendants have neglected and/or refused to make adjustment or payment
thereon, and this action is being commenced within one year and ninety days after the state-law
causes of action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, and
maintained a police force known as the New York Police Department (hereinafter "the NYPD").

4. That at all times herein mentioned, defendant NYPD OFFICER EVANS BELLAVOIX (hereinafter "Bellavoix") was and is employed as an officer with the NYPD.

5. That at all times herein mentioned, Bellavoix was acting within the course and scope of his employment as an officer with the NYPD.

6. That at all times herein mentioned, Bellavoix was acting under color of state law.

7. That at all times herein mentioned, defendant NYPD OFFICER UC 391 (hereinafter "UC 391") was and is employed as an officer with the NYPD.

8. That at all times herein mentioned, UC 391 was acting within the course and scope of his employment as an officer with the NYPD.

9. That at all times herein mentioned, UC 391 was acting under color of state law.

10. That at all times herein mentioned, defendant NYPD DETECTIVE EDWIN MARTINEZ (hereinafter "Martinez") was and is employed as a detective with the NYPD.

11. That at all times herein mentioned, Martinez was acting within the course and scope of his employment as a detective with the NYPD.

12. That at all times herein mentioned, Martinez was acting under color of state law.

13. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

FACTS

14. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

15. That on June 12, 2018, inside Washington Square Park, in the County of New York, City and State of New York, Bellavoix, UC 391, and Martinez (hereinafter collectively referred to as “the officers”), acting in concert and without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit a crime or criminal violation, and without plaintiff’s consent, and without otherwise being justified, forcibly searched and seized plaintiff.

16. That the search and seizure included, but was not limited to, forcibly grabbing plaintiff, searching plaintiff’s person and clothing, and forcibly placing plaintiff in handcuffs.

17. That following this improper search and seizure of plaintiff, the officers, still without a warrant or probable cause, formally arrested plaintiff and detained and imprisoned him at various locations, including a police vehicle, a police precinct, Central Booking, and a hospital.

18. That during the course of plaintiff’s imprisonment, the officers also used excessive force against plaintiff, including but not limited to slamming plaintiff against a wall and keeping plaintiff tightly handcuffed.

19. That on or about June 13, 2018, the officers initiated and/or caused to be initiated a criminal prosecution of plaintiff, charging plaintiff with crimes of which he was innocent, of which the officers knew plaintiff to be innocent, and for which the officers lacked probable cause.

20. That the officers further lacked probable cause to believe that the prosecution of plaintiff would succeed, since the officers knew that some of the charges were based on alleged evidence that was procured pursuant to an illegal search and seizure.

21. That in support of the aforementioned prosecution, each of the officers signed an accusatory instrument charging plaintiff with various crimes.

22. That in support of the aforementioned prosecution, each of the officers also knowingly made false statements to police officials and to the District Attorney.

23. That among the knowingly false statements made by the officers were that they observed plaintiff handing illegal drugs to someone and/or that plaintiff was observed by a fellow officer handing illegal drugs to someone.

24. That in support of the aforementioned prosecution, each of the officers also intentionally ignored and withheld from prosecutors evidence that tended to exculpate plaintiff, including evidence that the person to whom they alleged plaintiff handed the illegal drugs emphatically denied plaintiff's involvement and identified another individual as the one who allegedly handed him the illegal drugs.

25. That the false statements made by the officers, and the evidence withheld by the officers, were material and constituted evidence that likely would be probative as to plaintiff's innocence or guilt.

26. That as a result of the aforementioned prosecution, and as a further result of the false statements and withheld evidence, plaintiff suffered a significant deprivation of liberty, was restricted in his travel, and was required to make several post-arraignment court appearances.

27. That on or about May 6, 2019, nearly one year after his arrest, all charges against plaintiff were dismissed and the criminal prosecution terminated favorably to plaintiff.

28. That at all times herein mentioned, each of the officers observed the illegal and unconstitutional conduct of his fellow officers, had reasonable opportunities to intervene to prevent or stop that conduct, and deliberately failed and refused to do so.

29. That the aforementioned actions of the officers were intentional and malicious in nature.

30. That as a result of the aforementioned actions of the officers, plaintiff sustained physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur medical and healthcare expenses and other economic loss, was deprived of his liberty and freedom, and has been otherwise damaged.

31. That upon information and belief, prior to the events alleged herein the officers had used excessive force against and had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

32. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that the officers had used excessive force against and had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

33. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that the officers were unfit to act as police officers.

34. That despite the City's and the NYPD's prior knowledge of the officers' unfitness and propensities, the City and the NYPD knowingly retained the officers, thereby subjecting plaintiff to the officers' improper, illegal, and unconstitutional conduct.

35. That despite the City's and the NYPD's prior knowledge of the officers' unfitness and propensities, the City and the NYPD deliberately failed properly to train or supervise the officers such that the officers' malfeasance would be remediated, thereby subjecting plaintiff to the officers' improper, illegal, and unconstitutional conduct.

FIRST CAUSE OF ACTION AGAINST THE OFFICERS

(Illegal Search and Seizure: 42 U.S.C. § 1983)

36. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

37. That the aforesaid actions of the officers in their initial search, seizure, grab, and detention of plaintiff constituted an illegal search and seizure in the violation of the Fourth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SECOND CAUSE OF ACTION AGAINST THE OFFICERS

(False Arrest/False Imprisonment: 42 U.S.C. § 1983)

38. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

39. That the aforesaid actions of the officers in arresting and imprisoning plaintiff without probable cause and without a warrant constitute a false arrest and false imprisonment of plaintiff and an illegal search and seizure in the violation of the Fourth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Malicious Prosecution Under NY State Law)

40. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

41. That the aforesaid actions of the officers constitute a malicious prosecution of plaintiff, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST THE OFFICERS

(Malicious Prosecution: 42 U.S.C. § 1983)

42. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

43. That the aforesaid actions of the officers in initiating a prosecution of plaintiff without probable cause constitute a malicious prosecution of plaintiff and an illegal seizure in violation of the Fourth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE OFFICERS

(Denial of Right to Fair Trial: 42 USC § 1983)

44. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

45. That the aforesaid actions by the officers constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth, and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, Supervision, and Retention)

46. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

47. That the aforesaid actions by the officers and the resulting injuries to plaintiff followed and were the result of the negligence of the City in its hiring, training, supervision, and retention of the officers.

SEVENTH CAUSE OF ACTION AGAINST THE CITY*(Monell Claim: Deliberate Indifference)*

48. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

49. That the aforesaid actions by the officers and the resulting injuries to plaintiff followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by the officers in which the officers violated the constitutional rights of citizens of the State of New York.

50. That by virtue of the foregoing, plaintiff is entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

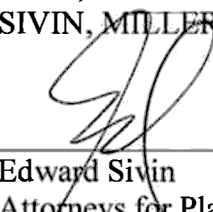
WHEREFORE, plaintiff demands judgment against all defendants on the foregoing causes of action in the form of compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands punitive damages against the officers in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiff also demands attorney's fees against all defendants pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
July 22, 2020

Yours, etc.

SIVIN, MILLER & ROCHE, LLP

By


Edward Sivvin
Attorneys for Plaintiff
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

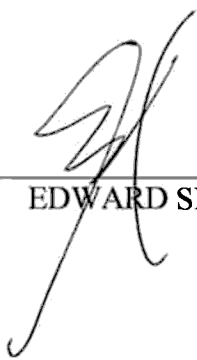
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
July 22, 2020



EDWARD SIVIN

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

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THE CITY OF NEW YORK, et al.,

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VERIFIED COMPLAINT

SIVIN, MILLER & ROCHE, LLP

Attorneys for Plaintiff

20 Vesey Street, Suite 1400

New York, NY 10007

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FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
July 22, 2020